

Theresa Marie "Terri" Schiavo (Dec. 3, 1963 – Mar. 31, 2005), from St. Petersburg, Florida, was a woman who suffered brain damage and became dependent on a feeding tube. She collapsed in her home on Feb. 25, 1990, and experienced respiratory and cardiac arrest, leading to 15 years of institutionalization and a diagnosis of persistent vegetative state (PVS). In 1998, Michael Schiavo, her husband and guardian, petitioned the Pinellas County Circuit Court to remove her feeding tube. Robert and Mary Schindler, her parents, opposed this, arguing she was conscious. The court determined that Terri would not wish to continue life-prolonging measures. The battle stretched on for seven years and included involvement by politicians and advocacy groups. Before the local court's decision was carried out, on March 18, 2005, the governments of Florida and the United States had passed laws that sought, unsuccessfully, to prevent removal of Schiavo's feeding tube. These events resulted in extensive national and international media coverage. She died at a Pinellas Park hospice on March 31, 2005, at the age of 41. Her parents have since maintained that her death constituted "judicial murder."¹

- ☞ Was the court decision in accordance with Jewish Law (*halacha*)?
- ☞ Does Judaism believe in a "right to die"?
- ☞ What is the rationale behind the Jewish approach to this painful issue?

The young wife of Rabbi Shmuel had fallen ill, and the doctors were unanimous in their opinion that there was no hope of recovery.

When her father-in-law, Rabbi Menachem Mendel, was told of the doctors' verdict, he said, "The Talmud raises the issue of a doctor's right to practice medicine. If G-d has afflicted the sick with illness, what right has a human being to intervene? But the Torah itself refers to the doctor's efforts when it says (Exodus 21:19) 'And heal he shall heal'. 'From here we derive,' say our sages, 'that a doctor has been given permission to cure.'

"But nowhere," concluded Rabbi Menachem Mendel, "has a doctor been given the right to condemn a human being as incurable."

End of life issues revolve around two points:

- 1. When does life end?**
- 2. May compromised/damaged life be ended?**

¹ http://en.wikipedia.org/wiki/Terry_Schiavo

1 *Babylonian Talmud, Sanhedrin 37a*

Therefore only a single human being was created, in order to teach you that any person who causes a single soul to perish, Scripture regards him as if he had caused the entire world to perish; and anyone who saves a single soul, Scripture regards him as if he had saved an entire world.

סנהדרין ל"ז.

לפיכך נברא אדם יחיד, ללמדך שכל המאבד נפש אחת מישראל מעלה עליו הכתוב כאילו איבד עולם מלא, וכל המקיים נפש אחת מישראל מעלה עליו הכתוב כאילו קיים עולם מלא.

2 *Babylonian Talmud, Sotah 20a*

A woman who has been accused of being a Sotah, yet has the merit of Torah study, this will work to her benefit and she will not die immediately. One type of merit will extend her life for a year, another merit for 2 years, and another merit for 3 years.

סוטה כ.

אם יש לה זכות היתה תולה לה, יש זכות תולה שנה אחת, יש זכות תולה ב' שנים, יש זכות תולה ג' שנים.

3 *Maimonides², Laws of Murderers, 1:4*

A Court of Law is warned not to accept monetary compensation from the murderer [i.e. in lieu of capital punishment], even if he were to give all the money in the world. And even if the avengers of the victim's blood [i.e. the victim's family] are willing to exempt him [if he pays monetary compensation, this may not be accepted]. For the soul of the victim does not belong to the avenger's of his blood, but rather, it belongs to the Holy One Blessed be He.

רמב"ם הל' רוצח פ"א ה"ד

ומוזהרין בית דין שלא ליקח כופר מן הרוצח ואפילו נתן כל ממון שבעולם ואפילו רצה גואל הדם לפטרו שאין נפשו של זה הנהרג קנין גואל הדם אלא קנין הקב"ה.

4 *Shulchan Aruch HaRav³, Choshen Mishpat, Laws of Damages to the Body and Soul, 4*

A person has no domain whatsoever over his body to hit himself, nor to embarrass himself, nor to afflict any pain whatsoever, even through withholding any food or drink.

שוע"ר חו"מ הל' נזקי גוף ונפש ה"ד

אין לאדם רשות על גופו כלל להכותו ולא לביישו ולא לצערו בשום צער אפילו במניעת איזה מאכל או משתה.

5 *Babylonian Talmud, Bava Metzia 62b*

Two people who were traveling and one of them had a jug of water. If they were to share it, they will both die; and if one of them drinks it, he will be able to reach civilization and survive. Ben Peturah explained that it is better that they should both drink it and die, rather than see the other perish. Until Rabbi Akiva came and taught that the verse (*Leviticus 25:36*) "And your

² Also known as Rambam, an acronym for Rabbi Moshe ben Maimon (1135-1204). Leading Torah scholar of the Middle Ages. His major works are: *Sefer HaMitzvos*; *Commentary to the Mishnah*; *Mishneh Torah* (*Yad Hachazakah*), a comprehensive code of Jewish law; *Moreh Nevuchim*, "Guide for the Perplexed," a primary work of Jewish philosophy.

³ Rabbi Shneur Zalman of Liadi (1745-1812). Author of *Tanya* and *Shulchan Aruch HaRav*, the major recodification of the *Shulchan Aruch*. First printed in Shklov in 1814. Also known as the *Alter Rebbe*, first Rebbe and founder of the Chabad Movement.

brother should live with you" means to say that your life takes precedence over the life of your friend.

בבא מציעא ס"ב:

שנים שהיו מהלכין בדרך, וביד אחד מהן קיתון של מים, אם שותין שניהם מתים, ואם שותה אחד מהן מגיע לשוב. דרש בן פטורא: מוטב שישתו שניהם וימותו, ואל יראה אחד מהם במיתתו של חברו. עד שבא רבי עקיבא ולימד: וחי אחיך עמך חייך קודמים לחיי חבריך.

6 *Jerusalem Talmud, Terumot 8:4*

It was taught: A group of people were traveling and they were approached by non-Jews who said to them, "Hand over one of you to be killed, or we will kill all of you, including that one person;" even if everyone will be killed, do not hand over a single Jewish soul.

ירושלמי תרומות ח:ד

תניא סיעת בני אדם המהלכים בדרך ופגעו בהם עכו"ם ואמרו להם תנו לנו אחד מהם ונהרוג אותו, ואם לאו נהרוג כלכם. אפילו כלם נהרגים לא ימסרו נפש אחת מישראל.

What is the difference between sources 5 and 6?

- Two separate obligations: 1. Not to kill; 2. To save.
- Active vs. passive
- If I watch someone drown, did I murder him?

7 *Babylonian Talmud, Shabbat 151b*

Our Rabbis taught: One who closes the eyes of a dying person, is considered to have shed blood. What is the reason for this law? The matter can be compared to a flickering flame; as soon as one touches it, the light is extinguished.

שבת קנ"א.

תנו רבנן: המעצמו עם יציאת הנפש הרי זה שופך דמים. משל לנר שכבה והולכת, אדם מניח אצבעו עליה מיד כבתה.

8 *Rabbi Moshe Isserles⁴, Yoreh Deah 339*

It is forbidden to cause the dying person to pass away quickly; for instance, one who is a *goses*⁵ for a long time and he cannot depart, it is prohibited to remove the pillow or cushion from underneath him... likewise he should not be moved from his place... but, anything causing a hindrance to the departure of his soul, such as the clattering noise near the patient's home, produced, for instance, by chopping wood, or salt on his tongue, and the like which hinder the departure of his soul, it is permissible to remove them, since such action involves no active hastening of death, but only the removal of the impediment.

⁴ Also known as the *Rema* (1530-1572). Rabbi of Cracow. Author of many works. Most famous are his Ashkenazic annotations to Rabbi Yosef Caro's *Shulchan Aruch* (Code of Jewish Law), which transformed his predominantly Sephardic work into a universal Code of Jewish Law.

⁵ "A moribund patient actually in the midst of death throes" (*Jewish Bioethics*, p.290, edited by Dr. Fred Rosner and Rabbi J. David Bleich).

רמ"א יו"ד סי' של"ט

אסור לגרום למת שימות מהרה, כגון מי שהוא גוסס זמן ארוך ולא יכול להפרד, אסור להשמיט הכר והכסת מתחתיו... וכן לא יזיזנו ממקומו... אבל אם יש שם דבר שגורם עכוב יציאת הנפש כגון שיש סמוך לאותו בית קול דופק כגון חוטב עצים או שיש מלח על לשונו ואילו מעכבים יציאת הנפש, מותר להסירו משם דאין בזה מעשה כלל אלא שמסיר המונע.

9 *Dr. Fred Rosner⁶, Jewish Bioethics, p.282*

The impediments spoken of in the Code of Jewish Law, whether far removed from the patient as exemplified by the noise of wood chopping, or in physical contact with him such as the case of salt on the patient's tongue, do not constitute any part of the therapeutic armamentarium employed in the medical management of this patient. For this reason, these impediments may be removed⁷. However, the discontinuation of instrumentation and machinery which is specifically designed and utilized in the treatment of incurably ill patients might only be permissible if one is certain that in doing so one is shortening the act of dying and not interrupting life. Yet who can make the fine distinction between prolonging life and prolonging the act of dying? The former comes within the physician's reference, the latter does not.

10 *Rabbi Immanuel Jakobovits⁸, Jewish Bioethics, p.144*

Human life being infinite in value, its sanctity is bound to be entirely unaffected by the absence of any or all mental faculties or by any bodily defects: any fraction of infinity still remains infinite.

A PHILOSOPHICAL ANALYSIS

- ◆ Life does not belong to us (can't own that which is closest to us)
 - ◆ Every moment of life is infinitely valuable
 - ◆ How do we explain this infinite value?
- ☞ Mere existence is a holy fulfillment of Divine plan

⁶ Fred Rosner M.D., FACP is assistant Dean and professor of medicine at Albert Einstein College of Medicine, Professor of Medicine at Mount Sinai School of Medicine, and Director of the Department of Medicine at Queens Hospital Center. Dr. Rosner is the Chairman of the Medical Ethics Committee of the state of New York. Dr. Rosner is an internationally known authority on medical ethics.

⁷ Note that the permission to remove an impediment to death applies only to a *goses*, i.e., someone in whom death is expected to be imminent, 3 days or less (*Jewish Bioethics, ibid.*)

⁸ Rabbi Jakobovits (1921-1999) was the Chief Rabbi of Great Britain from 1967-1991, and was the most prominent figure in 20th century Jewish medical ethics.